

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Emily Devaney	Team: Squad #01	CCRB Case #: 201903611	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 04/18/2019 6:10 PM	Location of Incident: Outside of 1122 Franklin Avenue	18 Mo. SOL 6/4/2021	Precinct: 42
Date/Time CV Reported Thu, 04/18/2019 8:28 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/29/2019 11:04 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Wilson Rodriguez	18658	959147	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM John Moise	29985	946014	042 PCT
2. POM Sandy Nunez	10829	956134	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Wilson Rodriguez	Force: Outside of 1122 Franklin Avenue, Police Officer Wilson Rodriguez struck § 87(2)(b) with a vehicle.	A . Unfounded
B . POM Wilson Rodriguez	Discourtesy: Outside of 1122 Franklin Avenue, Police Officer Wilson Rodriguez spoke discourteously to § 87(2)(b)	B . Exonerated
C . POM Wilson Rodriguez	Abuse: At the 42nd Precinct stationhouse, Police Officer Wilson Rodriguez strip-searched § 87(2)(b)	C . Unsubstantiated

Case Summary

On April 18, 2019, § 87(2)(b) filed this complaint with IAB by phone on behalf of her son, § 87(2)(b). IAB forwarded this complaint to the CCRB where it was received on April 29, 2019.

On April 18, 2019, at approximately 6:10 p.m., § 87(2)(b) was riding his bicycle the wrong way on East 165th Street in the Bronx when Police Officers Wilson Rodriguez and John Moise, from the 42nd Precinct, approached him. Police Officer Sandy Nunez from the 42nd Precinct witnessed this initial interaction. § 87(2)(b) fled on his bicycle, and PO Rodriguez and PO Moise followed in their vehicle. PO Rodriguez allegedly struck § 87(2)(b)'s bicycle with his vehicle causing § 87(2)(b) to fall to the ground outside of 1122 Franklin Avenue in the Bronx (**Allegation A: Force, unfounded**). PO Rodriguez approached § 87(2)(b) and told him, "Don't fucking move," (**Allegation B: Discourtesy, exonerated**). PO Rodriguez and PO Moise brought § 87(2)(b) back to the 42nd Precinct stationhouse to issue him a summons. PO Rodriguez searched § 87(2)(b) in front of the desk officer and recovered a knife with a four-inch blade. PO Rodriguez allegedly strip-searched § 87(2)(b) at the stationhouse (**Allegation C: Abuse of Authority, unsubstantiated**). § 87(2)(b) was released from the stationhouse later that day with a summons for § 87(2)(b).

The investigation obtained three body-worn camera (BWC) videos from PO Rodriguez and one from PO Moise (Board Review 01-04). Security camera footage from 1100 Franklin Avenue provided via Reznick request as part of the IAB case file also captured a portion of this incident (Board Review 05). Files from IAB Case FI § 87(2)(b) can be found at Board Review 06 and 07.

Findings and Recommendations

Allegation (A) Force: Outside of 1122 Franklin Avenue, Police Officer Wilson Rodriguez struck § 87(2)(b) with a vehicle.

It is undisputed that at the time of incident PO Rodriguez and PO Moise, approached § 87(2)(b) in an unmarked vehicle. § 87(2)(b) fled from the officers on his bicycle and the officers pursued § 87(2)(b) in their vehicle.

§ 87(2)(b) testified that the police vehicle struck his rear bicycle tire causing § 87(2)(b) to fall to the ground on his right side (Board Review 08). § 87(2)(b) sustained pain in his collarbone and abrasions on his knees and elbows. § 87(2)(b) did not accurately recall the incident location.

PO Rodriguez testified that he was in an unmarked vehicle with PO Moise and PO Nunez when he observed § 87(2)(b) riding his bicycle east on East 165th Street, a one-way westbound street, violating traffic law (Board Review 09). PO Nunez exited the car and approached § 87(2)(b) on foot. § 87(2)(b) turned around and fled PO Nunez on his bicycle. This raised PO Rodriguez's suspicion that § 87(2)(b) possessed drugs or a weapon in addition to violating traffic law. PO Rodriguez and PO Moise followed § 87(2)(b) in their car toward the intersection of East 166th Street and Franklin Avenue. § 87(2)(b) was traveling so fast that, as he turned right onto Franklin Avenue, he collided with a parked car. § 87(2)(b)'s left side hit the car, and he fell to the ground. § 87(2)(b) stood up and began running away from the officers. PO Rodriguez stopped the car approximately 10-feet away from where § 87(2)(b) fell. PO Rodriguez exited the vehicle and pursued § 87(2)(b) on foot. PO Rodriguez caught § 87(2)(b) outside of 1122 Franklin Avenue. PO Rodriguez denied striking § 87(2)(b) with a vehicle.

PO Moise also testified that he saw § 87(2)(b) collide with a parked car as he turned onto Franklin Avenue and that PO Rodriguez did not strike § 87(2)(b) with the vehicle (Board Review 10).

PO Nunez testified that he did not witness the initial interaction between PO Rodriguez, PO Moise, and § 87(2)(b) because he was not yet at the incident location (Board Review 11).

Surveillance video from the building at 1100 Franklin Avenue showed § 87(2)(b) turn right onto Franklin Avenue, which begins at the 07:06 minute-mark of the player's timestamp (Board Review 05). An unmarked vehicle with red and blue flashing lights in the rear windshield pursued § 87(2)(b). At 07:10, § 87(2)(b) appeared to collide with a dark car parked on the west side of Franklin Avenue. The video did not clearly show how § 87(2)(b) collided with the parked vehicle or if/how § 87(2)(b) fell. The unmarked police vehicle stopped next to the parked vehicle. Based on the angle of the video that was aimed at the rear of the police vehicle after it turned, § 87(2)(b) was not visible after the police vehicle turned the corner.

PO Rodriguez's BWC video showed PO Rodriguez driving and just after making a right turn, PO Rodriguez exited the vehicle on Franklin Avenue. PO Rodriguez appeared to stop the vehicle at 00:15 on the video player. § 87(2)(b) was visible at 00:19. At that time, he was approximately 10-feet in front of the police vehicle. § 87(2)(b) was standing next to his bicycle and moving forward away from the police vehicle. PO Rodriguez immediately ran toward and in pursuit of § 87(2)(b) on foot (Board Review 01). The video did not capture § 87(2)(b) colliding with the parked vehicle or PO Rodriguez allegedly striking § 87(2)(b)'s rear tire. Based on the angle of his BWC at the time, the video shows the lower front windshield of the vehicle and out the front part of the driver's side window. § 87(2)(b) is never visible in front of the car or on the front driver's side of the car while PO Rodriguez is behind the wheel.

None of the remaining BWC videos captured an angle of the incident that conclusively showed whether PO Rodriguez struck § 87(2)(b) with the police vehicle, however none of the BWC videos capture § 87(2)(b) complaining of being struck or of sustaining any injuries, but rather cordial exchanges after he was handcuffed (Board Review 01-04).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unfounded**.

Allegation (B) Discourtesy: Outside of 1122 Franklin Avenue, Police Officer Wilson

Rodriguez spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not allege that PO Rodriguez spoke discourteously to him. This allegation was captured on BWC video as described below.

The BWC video from PO Rodriguez showed that PO Rodriguez pursued § 87(2)(b) on foot and took hold of § 87(2)(b)'s arm (Board Review 01). PO Rodriguez told § 87(2)(b) to let go of the bicycle, which he did. At the 00:37 minute-mark of the player's timestamp, PO Rodriguez told § 87(2)(b) to put his hands behind his back twice and then said, "Don't you fucking move." PO Rodriguez handcuffed § 87(2)(b).

PO Rodriguez testified that he did not say the word "fucking" to § 87(2)(b) rather, PO Rodriguez began to say the word but stopped because he did not like to curse (Board Review 09). PO Rodriguez began to curse because of the adrenaline of the chase and the nature of the situation.

§ 87(2)(g)

According to the NYPD Patrol Guide Procedure 200-02, officers are required to treat every citizen with compassion, courtesy, professionalism, and respect (Board Review 12). However, DAO-DCT Disciplinary Case No. 2017-17005 found that profane remarks, made during stressful situations or while an officer is trying control a chaotic situation, are not misconduct (Board Review 13).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **exonerated**.

Allegation (C): Abuse of Authority: At the 42nd Precinct stationhouse, Police Officer Wilson Rodriguez strip-searched § 87(2)(b)

It is undisputed that PO Rodriguez and PO Moise brought § 87(2)(b) to the 42nd Precinct stationhouse.

PO Rodriguez and PO Moise both testified that they intended to issue § 87(2)(b) a summons at the stationhouse for § 87(2)(b) (Board Review 09-10). PO Rodriguez and PO Moise stated that they did not have any summonses with them at the time and that it is standard practice for anticrime officers to bring individuals to the stationhouse to issue summonses. PO Rodriguez and PO Moise also intended to search § 87(2)(b) at the stationhouse, as is protocol when lodging a prisoner.

§ 87(2)(b) stated that while inside the 42nd Precinct stationhouse, one of the officers involved in the stop outside of 1122 Franklin Avenue brought § 87(2)(b) to a nearby bathroom and instructed him to pull down his pants and underwear (Board Review 08). The officer told § 87(2)(b) to bend over, squat, and cough, which he did. The officer did not tell § 87(2)(b) the reason for this. The officer returned § 87(2)(b) to the holding cells. Approximately one hour later, the same officer removed § 87(2)(b) from the cells, issued him two summonses, and returned his bicycle. § 87(2)(b) left the stationhouse. § 87(2)(b) described this officer as a brown-skinned male officer with a medium build.

There is no stationhouse footage in this case.

There is no entry in the 42nd Precinct Command Log regarding a strip-search on this date (Board Review 14).

The 42nd Precinct Roll Call for Tour 3 does not note any officer assigned to attend the prisoner cell area at the time (Board Review 14).

The BWC videos do not show an officer strip-searching § 87(2)(b) (Board Review 01-04). PO Rodriguez's BWC video showed that PO Rodriguez was the officer who issued § 87(2)(b) the summonses and returned his property upon § 87(2)(b)'s release from custody (Board Review 04).

§ 87(2)(g)

PO Rodriguez denied that any officer strip-searched § 87(2)(b) (Board Review 09). PO Rodriguez

stated that after he lodged § 87(2)(b) in the cell, he went into a separate office to review § 87(2)(b)'s criminal history and write the summonses. Then PO Rodriguez dislodged § 87(2)(b) and issued him the summonses in front of the desk.

PO Moise stated that he assisted PO Rodriguez in lodging § 87(2)(b) in the cells and preparing paperwork in the office (Board Review 10). PO Moise denied that any officer strip-searched § 87(2)(b).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and has been named as a victim in four allegations (Board Review 15):
 - § 87(2)(b)
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- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in four allegations (Board Review 15):
 - § 87(2)(b)
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 -
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- Police Officer Wilson Rodriguez has been a member of service for five years and has been a subject in one CCRB complaint and one allegation which was not substantiated. § 87(2)(g) (Board Review 16).

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of April 22, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 17).

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Squad No.: 1

Investigator: 
Signature

Inv. Devaney
Print Title & Name

08/27/2020
Date

Squad Leader: Mgr. Joy Almeyda 8.27.20

	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date